

IN THE HIGH COURT OF JUSTICE
KING'S BENCH DIVISION — ADMINISTRATIVE COURT

Claim No: AC-2025-LON-004293

Zahmoul v Secretary of State for Justice & HMCTS

CLAIMANT'S FORMAL POSITION STATEMENT

Written Evidence to the Justice Committee of the House of Commons

Filed: 9 April 2026

1. Purpose of this Statement

1. This statement sets out the Claimant's formal position following the order of Collins Rice J dated 11 March 2026 certifying the claim as Totally Without Merit, and following the Court's failure over 28 days to assign, list, or respond to the CPR 3.1(7) application sealed on 12 March 2026.

2. This statement is filed for the record in these proceedings and is being provided to the Justice Committee of the House of Commons as written evidence of the matters described herein.

2. The Order Does Not Address the Claim

3. The order of 11 March 2026 does not engage with the claim that was actually brought. The claim was not about criminal complaints. It was not about enforcement of court orders. It was not a collateral challenge to judicial determinations in the family proceedings.

4. The claim was about administrative acts and omissions by HMCTS and the Ministry of Justice. It asked whether identifiable judicial determinations exist in respect of specific matters formally placed before the courts. It raised seven grounds, each

framed as a challenge to the absence of any lawful administrative process, recorded decision, or identifiable judicial act.

5. The following matters were placed before the Court. None received an identifiable judicial determination in the order of 11 March 2026:

- Whether any judicial order exists revoking the Claimant's participation measures under FPR Part 3A — **not addressed**
- Whether the administrative void arising from the absence of any such order is amenable to judicial review — **not addressed**
- Whether HMCTS's administrative handling of those measures engaged a continuing public law duty — **not addressed**
- Whether the failure to record, maintain or review participation measures for a disabled litigant breached the Equality Act 2010 and the Public Sector Equality Duty under section 149 — **not addressed**
- Whether the non-enforcement of Maintenance Pending Suit between March and May 2024 constituted an administrative failure — **not addressed**
- Whether the administrative handling of the Imerman devices and associated evidential material engaged a public law duty — **not addressed**
- Ground 7 — the administrative void ground, being the absence of any identifiable judicial determination across each of the matters raised — **not addressed at all**

6. The order instead characterised the claim as concerning the Defendants' response to criminal complaints, procedural matters in the family proceedings ancillary to judicial determinations, and the enforcement of court orders. None of those three characterisations reflects the pleaded grounds. The order answered a different claim from the one brought.

7. A court cannot mischaracterise a claim, leave the actual grounds unanswered, certify the proceedings as Totally Without Merit, bar oral renewal, and declare the matter closed. That is not a determination. It is a substitution.

3. The Claimant's Formal Position

8. The Claimant's position is as follows.

9.

- a) Either the Court addresses the claim that was actually brought — engaging with each of the seven grounds as pleaded, including Ground 7, and issuing a determination that is responsive to the administrative law questions raised —
- b) or these proceedings are formally stayed to enable the Claimant to instruct a barrister, following which the matter resumes on proper terms.

10. Those are the two available paths. The current position — a defective order, unanswered grounds, a sealed CPR 3.1(7) application ignored for 28 days, costs being actively enforced, and a CPR 52.8 deadline of 23 April 2026 expiring — is not a path. It is a compounding of the failure the proceedings were brought to address.

11. The Claimant is not asking the Court to determine the merits of the claim today. She is asking the Court to engage with the correct question. If the grounds as pleaded are not arguable, the Court must say so by reference to those grounds as pleaded — not by reference to a characterisation of the claim that does not correspond to what was filed.

4. The Pattern This Statement Records

12. The Claimant draws the Court's and the Justice Committee's attention to the structural pattern that this case exemplifies.

13. A litigant in person filed a complex administrative law claim arising in the context of family proceedings. The Court read the context and not the substance. The claim was characterised at the highest level of generality and dismissed without engagement with the pleaded grounds. The TWM certification closed the door on oral renewal. The only available route — CPR 3.1(7) — was filed the following day and has remained unanswered for 28 days. Costs are now being enforced under the uncorrected order. The appeal window expires on 23 April 2026.

14. Each of those steps compounds the last. None of them constitutes engagement with the claim. Together they constitute the precise pattern of institutional non-determination that the proceedings were brought to challenge.

15. The Claimant is raising this formally with the Justice Committee because the inequality of arms between a litigant in person and a represented defendant — in a system where paper-only permission decisions can certify complex claims as totally without merit without engaging with the pleaded grounds — is a structural problem that extends well beyond this case.

5. The Transcript Application and the Recusal Application — Two Further Instances of Non-Engagement

16. On 27 March 2026 the Claimant filed a formal EX107 application for the transcript of the ten-day final hearing in BV20D01752 (Zahmoul v Zahmoul, MacDonald J, 19–28 February 2024) at public expense. The application set out four specific grounds:

- A formal criminal referral is registered with the Metropolitan Police Service. The oral evidence at trial directly contradicts findings in the judgment. The official transcript is required to support that referral.
- The judgment of 18 April 2024 contains 111 paragraphs and zero references to the Claimant's autism or PTSD, despite the transcript of oral proceedings

containing 22 such references. The official transcript is required to establish that contrast on the official record.

- The attendance notes available are pupil notes only. No official transcript of the ten-day hearing has ever been produced.
- The transcript is required in connection with the Chancery proceedings BL-2024-001217 currently before Master Pester, which arise directly from orders made in BV20D01752.

17. The application was refused twice — on 27 March 2026 and again on 30 March 2026 — without engaging with any of those four grounds. The refusals redirected the Claimant to third parties — police, CPS, the Chancery Master — as if the existence of those parties answered the present application. It does not. The grounds exist now. The referral is registered now. The Chancery proceedings are live now. The refusals answered different questions from the ones asked.

18. The transcript is necessary because the present issue is not simply what orders were made, but whether the official judgments accurately reflect and engage with the oral evidential record of a ten-day final hearing. That question cannot be answered without the official transcript. Its absence deprives the Claimant, law enforcement, and the Chancery Court of the only authoritative record of what was said, what evidence was given, and what submissions were placed before the Court.

19. Transparency and fairness in the administration of justice require that an official record exist of proceedings whose findings are now the subject of criminal referrals, parallel High Court proceedings, and a detailed forensic contradiction analysis. The refusal to produce that record at public expense, without engaging with the grounds advanced, is itself a denial of access to justice.

20. The Claimant further draws the Committee's attention to the following. On 10 February 2025 the Claimant filed a formal application for the recusal of MacDonald J on

grounds of apparent bias and unlawful disability discrimination. That application was submitted daily and remained before the Court. It was never listed, never determined, and never the subject of any judicial order. The only response received was a letter from Peter Cobourn on 10 June 2025 redirecting the application back to the High Court. A recusal application is a formal judicial application. It cannot lawfully be ignored. The absence of any determination — not a refusal, not a dismissal, not a direction — is an administrative void of the same character as those identified in the Judicial Review proceedings.

21. The Committee is invited to note that across these proceedings the same structural pattern repeats: formal applications are filed, specific grounds are advanced, and the response is either a refusal that answers different questions or silence. That pattern is not confined to one judge or one proceeding. It is systemic.

Statement of Truth

I believe that the facts stated in this position statement are true. I understand that proceedings for contempt of court may be brought against anyone who makes, or causes to be made, a false statement in a document verified by a statement of truth without an honest belief in its truth.

Nadia Zahmoul

Signed: Nadia Zahmoul

Dated: 9 April 2026

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